

**Aged, Blind and Disabled Manual**  
**Section: Financial Eligibility Requirements**  
**Policy Manual Number: 110.010**  
**Chapter: ABD Eligibility Determination**

**Legal Authority:** 20 CFR 416.1160–20 CFR 416.1165; 20 CFR 416.1202–20 CFR 416.1204; 42 CFR 435.601; State Plan Attachment 2.6-A; Tenn. Comp. R. & Regs. 1200-13-20

## **1. Policy Statement**

For the SSI-Related Categories of Eligibility (COE), the following individuals will be included in the applicant's Eligibility Determination Group (EDG), if living in the same home:

- a.** The applicant; and
- b.** The applicant's eligible spouse.

For Medicare Savings Programs (MSPs), the applicant's spouse and dependent children under age 21 will be included in the EDG when living in the applicant's home. Stepchildren are included in the EDG when they live in the home and their natural or adoptive parent is the spouse of the applicant and living in the home.

Income and resources of parents, siblings, children, and ineligible spouses not included in the EDG are still considered in the financial determination through deeming. See the ABD Deeming of Income and Resources policy.

## **2. Definitions**

### **a. Child**

Child includes individuals:

- i.** Not married;
- ii.** Not the head of a household; and
- iii.** Under 18 years of age or under 22 years of age if a student regularly attending school.

### **b. Deeming**

The term deeming identifies the process of considering another person's income and resources to be available for meeting an applicant/enrollee's basic needs of food and shelter.

### **c. Eligibility Determination Group (EDG)**

The EDG includes individuals who impact the household size for an applicant requesting assistance.

**d. Holding Out Spouse**

A holding out relationship exists when an unrelated man and woman present themselves to the community as husband and wife in the absence of a legal marriage. The concept of a holding out relationship does not apply to the MSPs or Institutional Medicaid COEs.

**e. Ineligible Parent/Spouse**

A parent or spouse who is not eligible or potentially eligible for the COE for which the applicant is being considered.

**f. Parent**

Parent as related to this policy includes natural and adopted parents. A parent is a natural, adoptive or, in certain situations, a stepparent. A stepparent is not included in the deeming budget if any of the following circumstances apply:

- i. The natural or adoptive parent to whom the individual was married has died;
- ii. The natural or adoptive parent and the individual are divorced; or
- iii. The natural or adoptive parent and the stepparent's marriage has been annulled.

**g. Public Income-Maintenance Payments**

Income provided based on a determination of need by the federal, a state, or local government. Public income-maintenance payments include:

- i. Temporary Assistance for Needy Families (TANF);
- ii. Supplemental Security Income (SSI);
- iii. Refugee Act of 1980 payments based on need;
- iv. Disaster Relief and Emergency Assistance Act benefits;
- v. General assistance programs of the Bureau of Indian Affairs;
- vi. U.S. Department of Veterans Affairs payments based on need; and
- vii. State or local government assistance programs based on need.

**h. SSI-Related**

SSI-Related includes the following TennCare Medicaid COEs:

- i. Pickle Passalong;
- ii. Disabled Adult Child (DAC); and
- iii. Widow/Widower.

**i. Spouse**

A spouse is:

- i. An individual's legally married spouse;
- ii. An individual determined by the Social Security Administration (SSA) as eligible to receive Social Security benefits as the spouse of another; or
- iii. An individual's holding out spouse for SSI-Related COE only.

### **3. SSI-Related Eligibility Determination Group**

Financial eligibility in the SSI-Related COEs is determined based on an EDG size of one or two. Included EDG members are the applicant/enrollee and, if applicable, his eligible spouse if they have the same living arrangement. Otherwise, if there are additional household members, they will be considered in deeming budgets, if appropriate. For example, an ineligible spouse's income and resources may be deemed into the budget. If an ineligible spouse's income and resources are deemed into an applicant's budget, the EDG size will be two. See the ABD Deeming of Income and Resources policy for additional information. If the applicant is a child, her parent's assets and needs, e.g. financial responsibility to other children in the home, are considered in the deeming budget.

### **4. Institutional Medicaid Eligibility Determination Group**

Financial eligibility for Institutional Medicaid COEs is determined based on an EDG size of one. The only included EDG member is the applicant/enrollee. However, the community spouse and dependents do impact budgeting of the post-eligibility treatment of income (i.e. patient liability), and the community spouse's resources are considered in the resource assessment. See the Post-Eligibility Treatment of Income and Resource Assessment policies.

### **5. Medicare Savings Program Eligibility Determination Group**

MSP household composition is governed by the principle of Financially Responsible Relatives (FRR) and the applicant/enrollee's living arrangements. Financial responsibility is limited to spouse to spouse and parent to child. The living arrangement of each MSP applicant and, if applicable, his spouse and children, must be considered in determining EDG size. The following potential living arrangements should be taken into consideration for MSP applicants:

- a. A married individual living alone in the community, separated from her spouse is treated as an individual for MSP.
- b. A single or widowed individual living alone in the community is treated as an individual for MSP.
- c. A married couple living together in the community will be included in the EDG of one another, except when one or both spouses are eligible for HCBS. When an individual is eligible for HCBS and has a spouse living in the home, his spouse will not be included in the EDG. The institutionalized spouse will be treated as an individual and will have an EDG size of 1 for MSP. The community spouse's EDG will include the institutionalized spouse and will be an EDG size of 2.
- d. A couple who lives separately because one is in the community and one is in a nursing facility will have an EDG size of 1 because they do not live together.
- e. A couple in which both spouses reside in a nursing facility will have an EDG size of 1 for MSPs, even if they share the same room.

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- f. Dependent children under 21 living in the household of the applicant will increase the EDG size, including the corresponding federal poverty level threshold, for the applicant.

## 6. Verification

The state accepts self-attestation of EDG members and relationships between the EDG members.

The state will use the Public Assistance Reporting Information System (PARIS) data post-enrollment to determine if any enrollees are receiving benefits in another state, and to identify children for whom non-custodial parents are applying for benefits through TennCare.

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### Version History

| Revision Date | Section                                | Section Title                                                                                                                                                                                                                                                                                                                   | Page Number(s) | Reason for Revision    | Reviser |
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| 03.15.2015    |                                        |                                                                                                                                                                                                                                                                                                                                 |                | Publication            |         |
| 12.13.2016    | 4.                                     | Medicare Savings Program (MSP) Household Composition                                                                                                                                                                                                                                                                            | 2              | Non-Substantive Change | RH      |
| 03.18.2019    | 1.; 2.a.; 2.c.; 2.e.; 2.g.; 2.h.; 3-5. | Legal Authority; Policy Statement; Child; Eligibility Determination Group (EDG); Ineligible Parent/Spouse; Public Income-Maintenance Payments; SSI-Related; SSI-Related Eligibility Determination Group; Institutional Medicaid Eligibility Determination Group; Medicare Savings Program (MSP) Eligibility Determination Group | 1-3            | Policy Clarification   | LW      |
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| 10.01.2020    | 1.-3.; 5.                              | Policy Statement; Definitions; SSI-Related Eligibility Determination Group; Medicare Savings Program Eligibility Determination Group                                                                                                                                                                                            | 1-3            | Policy Clarification   | AJ      |
| 10.01.2020    | 2.-4.                                  | Definitions; SSI-Related Eligibility Determination Group; Institutional Medicaid Eligibility Determination Group                                                                                                                                                                                                                | 1-3            | Non-Substantive Change | TN      |